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CLERK OF COURT - CIRCUIT

IN THE CIRCUIT COURT OF SHELBY COUNTY, TENNESSEE
FOR THE THIRTIETH JUDICIAL DISTRICT AT MEMPHIS

IN RE FOREIGN COURT SUBPOENA

DENNIS BRIAN ANDERS, ET AL

Plaintiffs,

v.

MEDTRONIC, INC., AND
MEDTRONIC SOFAMOR DANEK USA, INC.

Defendant.

PLAINTIFFS' MOTION TO COMPEL NEIL BEALS

Comes now the Plaintiffs, Dennis Brian Anders et al., by and through their attorneys of record, and pursuant to Tennessee Rules of Civil Procedure, Rule 45.07(3), and file this Motion to Compel Discovery to enforce their subpoena served on Neil Beals, and show this Honorable Court the following:

FACTS AND PROCEDURAL HISTORY

1. *Dennis Brian Anders et al. v. Medtronic, Inc. et al.* ("*Anders*") is an action for product liability and fraud against Medtronic Inc., and its wholly owned subsidiaries, Medtronic Sofamor Danek, USA, Inc., (hereinafter collectively referred to as "Medtronic") for the injuries caused by their product, the Infuse® Bone Graft LT-Cage™ Lumbar Tapered Fusion Device System ("Infuse").

2. *Anders* is scheduled for trial on February 21, 2017.

3. Infuse is a Class III medical device that received Pre-Market Approval (PMA) from the FDA in July of 2002.

4. Infuse is used in spinal fusion surgeries and is supposed to aid in fusing different levels of the spine, promoting stability.

5. Infuse is a "system" that combines two components, consisting of three parts. The three parts are: (1) the recombinant human bone morphogenetic protein-2 ("rhBMP-2"); (2) the absorbable collagen sponge (ACS); and (3) a required approved spinal fusion cage.

6. Oftentimes, a surgeon may use only the rhBMP-2 component of the product. Additionally, many publications discuss the rhBMP-2 component rather than the full Infuse system.

7. Thirteen Medtronic-sponsored studies published in well-known medical journals between 2002 and 2009 failed to report any adverse events associated with Infuse. Many of the publications simply reported either "no unanticipated device-related adverse events" or "no adverse events directly or attributable to rhBMP-2."[1]

8. In June 2011, an issue of *The Spine Journal* (an internationally recognized medical journal that publishes peer-reviewed research articles related to evidence-based spine care), published an article that found that the Medtronic-sponsored studies had failed to disclose, or inaccurately reported, the safety of Infuse by concealing and/or underestimating its increased risks and dangers.[2]

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[1] Eugene J. Carragee, Alexander J. Ghanayem, Bradley K. Weiner, *A challenge to integrity in spine publications: years of living dangerously with the promotion of bone growth factors,* 11 Spine J. 480, 482-83, 463-468 (2011) attached hereto as Exhibit 1.

[2] Eugene J. Carragee,et al. *A critical review of recombinant human bone morphogenetic protein-2 trials in spinal surgery: emerging safety concerns and lessons learned.* 11 Spine J. 471-491 (2011) attached hereto as Exhibit 2.

9. *The Spine Journal* revealed that Medtronic-sponsored studies failed to disclose the life threatening and completely debilitating serious adverse effects seen in its earliest trials of Infuse.[3]

10. *The Spine Journal* reported that the actual rate of incidence of certain side effects of Infuse was ten to fifty times more than what was reported by the Medtronic-sponsored studies.[4]

11. In October of 2012 the Senate Committee on Finance released a Staff Report on "Medtronic's Influence on Infuse Clinical Studies."[5]

12. The Senate Report uncovered documents that show "Medtronic was heavily involved in drafting, editing, and shaping the content of medical journal articles authored by its physician consultants who received significant amounts of money through royalties and consulting fees from Medtronic. The company's significant role in authoring or substantively editing these articles was not disclosed in the published articles."[6]

13. Neil Beals was Group Director of Tissue/Biologics from November 1998 to September 2000; Group Director of Biologics from October 2000 to February 2003; and Vice President of Biologics Marketing from March 2003 to August 2011.[7]

14. Mr. Beals was named throughout the Senate Report as one of the key figures who had knowledge of specific adverse events and edited, drafted, and influenced publications related to Infuse. Specifically, the Senate Report found that:

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[3] *Id.*
[4] *Id.*
[5] S. Comm. on Finance, 112th Cong., 2d Sess., *Staff Report on Medtronic's Influence on Infuse Clinical Studies* (Oct. 2012) ("Senate Report") attached hereto as Exhibit 3.
[6] *Id.* at 2.
[7] *See* LinkedIn page attached hereto as Exhibit 4.

> After receiving a draft of an early InFuse study to review in October 2001, Medtronic's Neil Beals, whose 'primary job responsibility was to manage Biologics marketing programs and initiatives,' recommended that the physician authors of the study emphasize pain experienced by patients who received the bone graft... An October 31, 2001 e-mail shows that Beals suggested to Dr. Burkus that 'a bigger deal should be made of elimination of donor site pain with INFUSE . . . so that 'equivalent' results aren't received as a let down.' Again, after reviewing a later draft of the study, Beals asked Dr. Burkus on March 8, 2002, 'would it be appropriate to make a bigger deal out of donor site pain and include more discussion and references?' Subsequently, a sentence was inserted at the end of a later draft, and included in the published version of the article, that read, 'The use of rhBMP–2 is associated with high fusion.'[8]

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> Medtronic also sought to include discussion of long-term pain in the Baskin, et. al. 2003 paper on InFuse in the cervical spine. In a draft of the publication that was being circulated on August 30, 2002, the authors wrote, '[b]y 12 months after surgery, the patients [sic] graft-site pain had resolved . . . and no patients complained about the graft-site appearance.' Beals inserted comments after this sentence stating, 'ALTHOUGH THE PATIENTS DID NOT COMPLAIN ABOUT APPEARANCE DIDN'T SOME STILL EXPERIENCE PAIN AT THE DONOR SITE? SEEMS LIKE RESIDUAL EFFECTS OF DONOR SITE SHOULD BE NOTED.'[9]

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> In an e-mail to his colleague, Beals wrote, 'I would also add in more discussion on donor site pain and need for osteogenetic graft material (plant seed of doubt for just using allograft by itself).'[10]

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[8] Exh. 3 at 11 (footnotes removed).
[9] *Id.* at 12.
[10] *Id.* at 16.

15. Upon request of Plaintiffs' counsel and pursuant to Tenn. Code Ann. § 24-9-203, the Shelby County Circuit Court Clerk issued a subpoena directed at Mr. Beals on October 18, 2016.[11]

16. On November 5, 2016, Plaintiffs served Mr. Beals with the subpoena to appear for a deposition and produce documents.[12]

17. On November 21, 2016, Neil Beal's counsel served Plaintiffs with written objections.[13]

18. Mr. Beals objected on grounds that 1) Mr. Beals has not worked at Medtronic in 5 years and will "likely" be unable to answer any of Plaintiffs questions accurately and 2) the request for production is overly broad and burdensome.[14]

19. On November 21, 2016, Plaintiffs' counsel left a voicemail and emailed Mr. Beals' counsel to discuss the written objections and to inform them of Plaintiffs intent to file this Motion to Compel in the event the objections in their letter could not be resolved by November 23, 2016.[15]

20. Counsel for Mr. Beals replied to Plaintiff's email stating that they would like to discuss the subpoena in more detail the following day.[16]

21. An associate from Bass Berry & Sims PLC called Plaintiffs the morning of November 22, 2016 to discuss the subpoena served on Mr. Beals. A call was planned for later that afternoon to further discuss the subpoena.

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[11] Subpoena issued to Neil Beals attached hereto as Exhibit 5.
[12] Affidavit of service attached hereto as Exhibit 6.
[13] November 21, 2016 letter from Bass Berry & Sims PLC containing written objections attached hereto as Exhibit 7.
[14] *Id.*
[15] November 21, 2016 email chain attached hereto as Exhibit 8.
[16] *Id.*

22. On the afternoon of November 22, 2016, Plaintiffs discussed the subpoena with counsel for Mr. Beals but were unable to resolve the objections raised in the November 21, 2016 letter. Counsel for Mr. Beals was informed again of Plaintiffs' intent to file this motion on November 23, 2016.

LAW AND ARGUMENT

Pursuant to Tenn. Code Ann. § 24-9-203 a party may submit a foreign subpoena to the clerk of the court who may issue the subpoena for service upon the person that the subpoena is directed. A party may also apply for an order compelling discovery pursuant to Tenn. Code Ann. § 24-9-205 and Tennessee Rule of Civil Procedure 37.01(4).

Both of the objections in Mr. Beals' November 21, 2016 letter are without merit. First, the objection that Mr. Beals will "likely" not be able to accurately recall his work at Medtronic is not a proper objection and further, he has not seen any of the documents Plaintiffs plan to use at his deposition that may refresh his recollection.[17] Mr. Beals was a key figure at Medtronic for approximately 13 years and was integral to the development of and publications relating to Infuse, as shown from the numerous references to him in the Senate Report.[18] He was also the Vice President of Biologics Marketing from March 2003 to August 2011.[19] It is likely that Mr. Beals will remember relevant information from his decade of experience of working on Infuse, including but not limited to his unique insight into the process of ghostwriting various clinical studies outlined in the Senate Report, and the marketing of Infuse.

Second, Mr. Beals argument that the request for production is overly broad and burdensome is also without merit because Mr. Beals has not confirmed whether or not he even

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[17] *See* Exh. 7.
[18] *See* Exh. 3 and 4.
[19] *See* Exh. 4.

has documents, where they are kept, and if producing them would actually be burdensome. Additionally, Mr. Beals' 13 years of employment and extensive involvement in the Infuse's development necessitate the current scope of the requests.

CONCLUSION

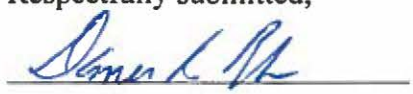
For the foregoing reasons, pursuant to Rule 45.07(3) of the Tennessee Rules of Civil Procedure, the Plaintiff respectfully prays for the following relief:

(1) That this Honorable Court issue a written Order decreeing that Mr. Beals serve complete, accurate, and responsive documents to Plaintiffs' request for production and to serve those documents upon the Plaintiffs by a specific date certain of the Court's choosing, but preferably no later than two weeks from the date of the Court's Order;

(2) That said Order also request Mr. Beals to appear for a deposition at a time and place agreed upon by the parties that is after the production of documents but at least twenty days prior to the February 21, 2017 trial date in *Anders*;

(3) Any additional and further relief or sanctions as this Honorable Court may deem necessary to carry out its obligation to protect the discovery process from abuse.

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on November 23, 2016, a true copy of the foregoing document has been served via U.S. Mail, first class, postage prepaid, and via electronic means upon the following counsel of record:

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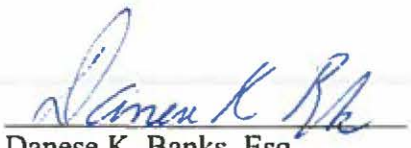

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